



सत्यमेव जयते

भाग-1(ख)
महत्वपूर्ण सरकारी आज्ञायें।
GROUND WATER DEPARTMENT
NOTIFICATION
Jaipur, February 10, 2025

Guidelines for Ground Water Regulation in the State of Rajasthan

No. F. 12(7)GWD/2024/03669 :-Whereas, State Ground Water Department of Rajasthan is ensuring sustainable ground water development and management in the State.

And whereas, water related matters falls in State list of Seventh Schedule of the Constitution of India.

And whereas, at present regulation of extraction of ground water is being carried out as per guidelines issued by Central Ground Water Authority (CGWA), due to the absence of any State specific guidelines.

And whereas, Government of Rajasthan is of the opinion that, mechanism of extraction of Ground water in the State need to be rationalized to promote economic and sustainable development.

Now, therefore, in the exercise of the powers conferred by section 5 of the Environment (Protection) Act, 1986 (Central Act No. 29 of 1986) delegated to the State Government of Rajasthan by the Ministry of Environment, Forest & Climate Change, Government of India vide it's Notification No. S.O.152 (E) dated 10.02.1988, the State Government hereby issues "Guidelines for Ground Water Regulation in the State of Rajasthan" with a view to regulate groundwater development and its effective management in the State as per the schedule below. These guidelines will come into force with immediate effect from the date of the Gazette Notification in the State of Rajasthan.

SCHEDULE

1.0. Applicability: All new/existing industries, industries seeking expansion, mining and other than industrial & mining projects abstracting ground water, unless specifically exempted in these guidelines, will be required to seek No Objection Certificate for extraction of ground water.

2.0. Exemptions from seeking No Objection Certificate:

Following categories of consumers and activities shall be exempted from seeking No Objection Certificate for ground water extraction:

- Individual Consumers, Residential Apartments, Group Housing Societies and Dwelling units for Economically Weaker Sections (EWS) for drinking and domestic use.
- Government drinking water supply schemes.
- Establishment of Armed Forces and Central Armed Police Forces.
- Agricultural activities.

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- v. Micro, Small and Medium Enterprises (MSME) drawing ground water less than 10 cum/day.
- vi. Any other project/activity which requires drawing of ground water only for drinking/ domestic purposes up to 5 cum/day.

3.0 Procedure to seek No Objection Certificate (NOC) for Ground Water Extraction

The project proponent/applicant shall submit an application on online portal with requisite documents and application fee of Rs. 10,000/-.

Sub-Divisional Officer (SDO) will grant No Objection Certificate after due examination of the application. It shall be issued for 5 years in case of safe, semi-critical & critical categories and 2 years for the over-exploited categories in first instance for all activities. (based on the categorization of blocks, the trend of ground water level depletion, the level of water table, quality of ground water, availability of surface water or other relevant criteria etc.)

3.1 Documents to be submitted with the application

- i. Details of water requirement computed as per National Building Code, 2016.
- ii. Proposal for the Rain Water Harvesting Plan and in case of existing project, proof of constructed Rain Water Harvesting Structures.
- iii. Approved Mining plan (for Mining projects)
- iv. Document as proof of new establishment and commencement of operation.

3.2 All Industries, Mining and other industries and mining projects drawing ground water in safe, semi-critical, critical and over-exploited assessment units shall be required to pay groundwater abstraction charges as per Annexure I.

4.0. Industrial Use

SS No Objection certificate for ground water extraction by industries shall be granted subject to the following specific conditions:

- i. Construction of observation well (s) (Piezometer)(s) within the premises and installation of appropriate water level monitoring mechanism for industries drawing/proposing to draw more than 100 m³/day of ground water for Hard rock aquifer type and more than 500 m³/day of ground water for Alluvium aquifer type. Detailed guidelines for construction of piezometers are given in Annexure-2.
- ii. Monthly water level data shall be submitted to the Ground Water Department through online portal.
- iii. Injection of treated/ untreated wastewater into the aquifer system will be strictly prohibited.
- iv. Polluting industries listed in Annexure-3, need to undertake necessary well head protection measures to ensure the prevention of ground water pollution.

4.1. Prohibition: - No objection certificate shall not be granted to new packaged water industries in over-exploited areas, even if they belong to MSME category.

5.0 Mining Projects

All existing as well as new mining projects will be required to obtain No Objection Certificate for ground water abstraction.

- i. Construction of observation well(s) (piezometers) along the periphery of the premises for monthly ground water level monitoring shall be mandatory for mines drawing/ proposing to draw more than 100 m³/day of ground water.
- ii. The proponent shall monitor groundwater levels by establishing observation wells (piezometers) in the core and buffer zones as specified in the No Objection Certificate.
- iii. It shall be mandatory to ensure that water available from dewatering operations is properly treated to avoid contamination of surface water and should be gainfully utilized for supply for irrigation, dust suppression, mining process, recharge in downstream and for maintaining e-flows in the river system.
- iv. Mining unit shall also monitor the water quality of mine seepage and mine discharge through NABL-accredited/Govt. approved laboratories, and the same shall be submitted through online portal.

6.0 Other than Industrial and Mining Projects:

New and existing projects other than industrial and mining and not having valid NOC shall be required to seek No Objection Certificate for abstraction of ground water.

The No Objection Certificate for ground water abstraction will be granted subject to the condition that proponent shall be required to carry out regular monitoring of dewatering discharge rate using a digital water flow meter and submit the data to the Ground Water Department through online portal.

Monitoring records and results should be retained by the proponent for two years for inspection or reporting as required by Ground Water Department, Rajasthan.

7.0 General Compliance Conditions in No Objection Certificate

- i. Installation of tamper proof BIS/IS standards digital water flow meter having telemetry system in the abstraction structure(s) shall be mandatory for all users seeking No Objection Certificate, and intimation regarding their installation shall be communicated to the Ground Water Department within 30 days of the grant of No Objection Certificate.
- ii. Proponents shall pay Ground Water Abstraction charges based on the quantum of ground water extraction as applicable as per the rates.
- iii. Proponents shall monitor quality of ground water from the abstraction structure(s) once in a year and provide water quality data to Ground Water Department through online portal.

8.0 Renewal of No Objection Certificate

No objection certificate shall be renewed periodically, subject to the compliance of the conditions mentioned therein:

- i. The applicant shall apply for renewal of No Objection Certificate at least ninety days prior to expiry of its validity.
- ii. Application for renewal of No Objection Certificate shall be subject to the compliance report generated through online portal.
- iii. Before granting renewal, Competent Authority shall satisfy itself that the conditions of No Objection Certificate have been complied with.

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- iv. No Objection Certificate will be renewed for all users after 5 years in case of safe, semi-critical & critical categories and 2 years for the over exploited category after issuance of NOC.
- v. If the application for renewal is submitted in time and the Competent Authority is unable to process the application in time, No Objection Certificate shall be deemed to be extended till the date of renewal of No Objection Certificate.
- vi. If the proponent fails to apply for renewal within 3 months from the date of expiry of No Objection Certificate, the proponent shall be liable to pay Environmental Compensation for the period starting from the date of expiry of No Objection Certificate till No Objection Certificate is renewed.

9.0. Refusal and Revocation of NOC

- i. Application to seek No Objection Certificate will be refused owing to incomplete documentation or not found suitable after scrutiny.
- ii. No Objection Certificate will be revoked, if proponent is failed to comply the conditions of No Objection Certificate or submission of false documents/information with application.

10.0 Appeal

Any person aggrieved by an order made by the Competent Authority under these guidelines may, within thirty days from the date on which the order is communicated to him, prefer an appeal to the concerned District Collector. On receipt of an appeal, the District Collector shall, after giving the appellant and the Competent Authority, an opportunity of being heard, dispose of the appeal as expeditiously as possible.

11.0. Procedure of Modification in NOC/Corrigendum

Proponent shall submit an online application for modification/corrigendum in the existing issued No Objection Certificate. Competent Authority will issue a modified No Objection Certificate after scrutinizing the application and proponent shall deposit charges through the online portal as per Annexure 4.

12.0 Monitoring of Compliance of No Objection Certificate Conditions

To monitor the compliance of No Objection Certificate conditions, the following steps shall be taken:

- i. Suitable Mechanism will be developed for effective compliance, monitoring and redressal of grievances.
- ii. District Collectors would take enforcement measures like sealing unauthorized ground water abstraction structures, disconnection of electricity against those violating the No Objection Certificate conditions and taking action for imposition of Environmental Compensation.
- iii. In case of violation of any of the No Objection Certificate conditions, the proponents shall be liable to pay the penalties as per Annexure 5.

13.0 Delegation of power against illegal groundwater withdrawal

The District Collector or officer authorized by him can seal illegal wells, disconnect electricity supply to the energized wells of the offenders in their respective jurisdictions. The Authorized Officers will also take appropriate action against offenders as per section 15 of the Environment (Protection) Act, 1986, amended from time to time.

14.0 Provision of Penalty

Penalty shall be imposed on the proponents for non-compliance of No Objection Certificate's conditions issued by the Competent Authority. Rates of penalty proposed for non-compliance of various conditions of No Objection Certificate are given in Annexure 5. The rates of penalty may be reviewed periodically.

15.0 Environmental Compensation

Extraction of ground water for commercial use by industries, Other than Industrial and Mining units and mining projects without a valid No Objection Certificate from appropriate authority shall be considered illegal and such entities shall be liable to pay Environmental Compensation for the quantum of ground water so extracted. The method to calculate the Environmental compensation as mentioned below:

ECGW = 15 times for charges prescribed of ground water abstraction as per Annexure 1
x No. of days

Where groundwater consumption is in m³/day and ECRGW in Rs./cum.

16.0 Receipts

Receipts on account of application fee for No Objection Certificate and its modification, environmental compensation, penalty and water abstraction charges shall be deposited in the Consolidated Fund of the State.

An online portal may be developed by the Ground Water Department.

17.0 District Ground Water Conservation and Management Committee

District Ground Water Management Plans shall be prepared by District Ground Water Conservation and Management Committee. The objective of the Ground Water Conservation and Management Plan shall be attainment of augmentation of Ground Water resources for sustainability and their management. The composition of District Ground Water Conservation and Management Committee shall be as under:-

- a. District Collector - **Chairman**
- b. Superintending Engineer- Public Health Engineering
Department, Govt. of Rajasthan - **Member**
- c. Joint Director- Agriculture Department,
Govt. of Rajasthan - **Member**
- d. Deputy Director- Horticulture Department,
Govt. of Rajasthan - **Member**
- e. Superintending Engineer- Watershed Development
and Soil Conservation Department, Govt. of Rajasthan- **Member**
- f. District Level Officer – Water Resource Department,
Govt. of Rajasthan - **Member**
- g. District Level Officer – Ground Water Department,
Govt. of Rajasthan - **Member Secretary**

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18.0 User Management System

The Ground Water Department shall develop a robust online platform for inviting and processing online applications, fee management, issuing No Objection Certificate, monitoring of ground water abstraction, data collection, appeal and grievance redressal.

The user management portal will provide end to end solution to applicants and concerned officials. The admin powers would be delegated to all concerned Sub-Divisional Officers (SDOs) and District Level Officers of Ground Water Department for management of No Objection Certificate, monitoring, and report generation.

The Ground Water Department will oversee that fund received under these guidelines on account of application fee for No Objection Certificate and its Modification, environmental compensation, penalty and water abstraction charges is deposited in the Consolidated Fund of the State.

Annexure-1

Water abstraction charges for all purpose other than packaged drinking water units (Rs per m^3)

S.No.	Category of area	Quantum of ground water withdrawal			
		< 200 m^3/day	200 to <1000 m^3/day	1000 to <5000 m^3/day	5000 m^3/day and above
1.	Safe	1.00	2.00	3.00	5.00
2.	Semi-critical	2.00	3.00	5.00	8.00
3.	Critical	4.00	6.00	8.00	10.00
4.	Over-exploited*	8.00	10.00	16.00	20.00

*Note- Charges for Mining units in over-exploited zone will be half of the charges indicated in table above

Rates of ground water abstraction charges for packaged drinking water units (Rs per m^3)

S.No.	Category of area	Quantum of ground water withdrawal				
		Up to 50 m^3/day	51 to <200 m^3/day	200 to <1000 m^3/day	1000 to <5000 m^3/day	5000 m^3/day and above
1.	Safe	1.00	3.00	5.00	8.00	10.00
2.	Semi-critical	2.00	5.00	10.00	15.00	20.00
3.	Critical	4.00	10.00	20.00	40.00	60.00
4.	Over-exploited (for existing units)	8.00	20.00	40.00	80.00	120.00

Annexure-2

Guidelines for construction of Piezometers and monitoring of Ground Water Levels and Quality

A piezometer is a borewell/ tube well used only for measuring the water level by lowering a tape/ sounder or automatic/ digital water level measuring equipment. It also takes water samples for water quality testing whenever needed. General guidelines for installation of piezometers are as follows:

1. The Piezometer is to be installed/ constructed at a minimum distance of 50 m from the pumping well through which groundwater is being withdrawn. The diameter of the Piezometer should be about four inches to six inches.
2. The depth of the Piezometer should be the same as that of the pumping well from which groundwater is being abstracted. If more than one pumping well is constructed to tap aquifers at different depths, more than one Piezometer shall be required to be constructed to tap different aquifers, as in the pumping wells.
3. The measurement of the water level in the Piezometer should be taken only after the pumping from the surrounding tube wells has been stopped for about four to six hours.
4. The groundwater quality has to be monitored once a year during the pre-monsoon (April/May) period by industries and mines drawing groundwater. Samples of groundwater should be analyzed from an accredited laboratory.
5. A permanent display board should be installed at the Piezometer/ Tube well site to provide the location, piezometer/ tube well number, depth and zone tapped of the piezometer/ tube well for standard referencing and identification.
6. Any other site-specific requirement regarding safety and access for measurement may be taken care off.

List of polluting Industries

S. No	Industries
1.	Aluminum
2.	Cement
3.	Distillery
4.	Dye and dye intermediate
5.	Chlor-Alkali
6.	Fertilizers
7.	Iron & steel
8.	Oil refinery
9.	Petrochemical
10.	Pesticides
11.	Pharmaceuticals
12.	Power Plants
13.	Pul p & paper
14.	Sugar
15.	Tannery
16.	Zinc
17.	Copper

Charges for correction/Modification in the existing issued No Objection Certificate

S.No.	Item	Charges in Rs.
1	Change in recharge quantum	10,000
2	Change in User ID	5,000
3	Change in firm Name	5,000
4	Extension of No Objection Certificate	5,000
5	Issuance of duplicate No Objection Certificate	5,000
6	Issuance of corrigendum to No Objection Certificate	5,000
7	Any other items/corrections etc.	5,000

Penalty provision for non-Compliance of No Objection Certificate conditions

S.No.	Items	Charges in Lac
1	Non-installation/faulty Digital water Flow meter with telemetry system	2.0
2	Non-disclosure/ construction of additional groundwater abstraction structures a) Non-functional Structures. b) Defunct/Abandoned c) Note: Given rates are for unit non-functional/defunct/abandoned structures. This shall be multiplied by the total of such structures to arrive at a consolidated penalty.	2.0 1.0
3	Reporting of fresh water zones as Brackish/ Saline zones in application.	2.0
4	Non installation of Piezometer.	2.0
5	Non installation/ faulty DWLR/Telemetry system	1.0
6	Non construction/Inadequate capacity of Recharge/ Water conservation structures.	5.0
7	Non maintenance of Recharge structures.	2.0
8	Injection of treated/untreated water into the aquifer system. Note: In addition to penalty, the proponent shall bear the cost of aquifer remediation as per the provisions of Environment (Protection) Act: 1986.	10.0
9	Non submission of Water level/Water quality data.	0.5
10	Non-maintenance of log book of daily withdrawal/non submission of Ground water abstraction data.	0.5
11	Non submission of photograph of recharge structure(s).	0.5
12	Non submission of Self compliance report.	1.0
13	Construction of ground water abstraction structures by unauthorized/ unregistered Drilling Rigs (per structurers).	1.0
14	Non registration of water supply tankers.	5.0
15	Submission of false information/ undertaking.	1.0

By order and in the name of the Governor,

Kailash Meena,
Deputy Secretary to the Government.

राज्य केन्द्रीय मुद्रणालय, जयपुर।